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Case Number: 24STCV07949 Hearing Date: June 26, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

KAYLEN

ROBINSON, et al.,

vs.

R&E

MANAGEMENT COMPANY.

Case No.:

24STCV07949

Hearing Date: June 26, 2026

Defendant R&E

Management Inc.'s demurrer to Plaintiff Kaylen Robinson's, individually and as GAL for A.R., First Amended Complaint is overruled as to the 1st and 2nd causes of action.

Defendant R&E Management Inc. [erroneously sued as

R&E Management Company] ("R&E") ("Defendant") demurs to Plaintiff Kaylen

Robinson's, individually and as GAL for A.R., ("Robinson") ("Plaintiff") 1st and 2nd causes of action in her first amended complaint ("FAC") on the basis they fail to state facts sufficient to constitute causes of action against Defendant. (Notice of Demurrer, pgs. 1-3; C.C.P. §430.10(e).)

Meet and Confer

Before filing a demurrer, the demurring party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41(a), emphasis added.)

The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith. (C.C.P. §430.41(a)(3), emphasis added.)

Defendant's counsel declares that on February 11, 2026, he met and conferred with Plaintiff's counsel via email, and Plaintiff's counsel did not respond. (Decl. of Abramson ¶3, Exh. 1.) Defendant's counsel's declaration is in violation of C.C.P. §430.41(a) because he does not declare that he met and conferred in person, by telephone, or by video conference. Email writing is not "meeting and conferring" as contemplated by the statute; rather, it is merely corresponding. However, failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (C.C.P. §430.41(a)(4).) Therefore, the Court will consider Defendant's demurrer.

Procedural Background

Plaintiff filed her initial Complaint on March 28, 2024, against Defendant alleging two causes of action: (1) premises liability/negligence; and (2) negligent infliction of emotional distress.

Plaintiff filed the operative FAC on October 1, 2025,

alleging the same two causes of action.

Defendant filed its demurrer on March 4, 2026. Plaintiff filed her opposition on June 12, 2026. As of the date of this hearing no reply has been filed.

Summary of Demurrer

Defendant demurs to the 1st and 2nd causes of action on the basis they fail to state facts sufficient to constitute causes of action against it. (Demurrer, pg. 3.)

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District (1992) 2 Cal.4th 962, 967.)

Failure to State a Cause of Action

Premises Liability [Plaintiff individually and as A.R.'s GAL against Defendant] (1st COA)

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. Premises liability 'is grounded in the possession of the premises and the attendant right to control and manage the premises'; accordingly, 'mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.' But the duty arising from possession

and control of property is adherence to the same standard of care that applies in negligence cases. In determining whether a premises owner owes a duty to persons on its property, we apply the Rowland [Rowland v. Christian (1968) 69 Cal.2d 108 [70 Cal.Rptr. 97, 443 P.2d 561]] factors. Indeed, Rowland itself involved premises liability.” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1159, internal citations omitted.)

“The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence.” (Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.)

Plaintiff alleges that she entered into a lease agreement with Defendant for her apartment located at 1227 S. Westmoreland Avenue #1/2A, Los Angeles, California 90006 (“Subject Premises”). (See FAC ¶¶5, 8.)

Plaintiff alleges that on or about April 28, 2022, at approximately 10:45 a.m., Plaintiff was taking a shower when a broken window in the apartment fell on her baby daughter, A.R.’s, right hand, breaking A.R.’s index and middle fingers. (FAC ¶10.) Plaintiff alleges that it was extremely hot in the apartment the day the incident occurred, so the living room window needed to be up. (FAC ¶10.)

Plaintiff alleges that when she was in the shower, she knew that A.R. was in the living room. (FAC ¶11.) Plaintiff alleges that she heard the broken window slam and contemporaneously heard her daughter screaming and crying. (FAC ¶11.) Plaintiff alleges that because she knew the window was broken, as she had previously informed Defendant about the broken window, Plaintiff knew immediately that her baby daughter was severely injured by the broken window. (FAC ¶11.)

Plaintiff alleges that A.R. was bleeding with scrapes on the outside of her broken fingers and two scrapes on the inside of her fingers. (FAC ¶12.) Plaintiff alleges that due to A.R.’s injuries, Plaintiff took A.R. to Children’s Hospital. (FAC ¶12.)

Plaintiff alleges that as a result of the injuries sustained, A.R. was required to wear a bandage and a glove for approximately six (6) weeks. (FAC ¶13.)

Plaintiff alleges that two weeks prior to this incident, Plaintiff notified Defendant that the window in her living room was broken and needed to be fixed. (FAC ¶14.) Plaintiff alleges that she called the phone number and left a message for maintenance. (FAC ¶14.) Plaintiff alleges that she also explained in an email that the living room window recently broke and that it “no longer stays up.” (FAC ¶14.) Plaintiff alleges that she asked for the window to be repaired. (FAC ¶14.)

Plaintiff alleges that Defendant has a history of not answering calls and/or emails. (FAC ¶15.) Plaintiff alleges that Defendant also has a history of not fixing issues throughout the apartment complex. (FAC ¶15.) Plaintiff alleges that Defendant was on notice of the broken window and failed to fix the issue, putting the Plaintiff at risk. (FAC ¶15.)

Plaintiff alleges that under the Lease, tenants are instructed to report maintenance issues to management, and management expressly promises that “necessary repairs will be made as soon as possible” upon such notice (Lease, Move-In Inventory Checklist, p.19). (FAC ¶16.) Plaintiff alleges that she complied with this procedure by calling and emailing Defendant regarding the defective window, yet Defendant failed to act. (FAC ¶16.)

Plaintiff alleges that as an Owner under the Lease, Defendant owed Plaintiff a duty of care to repair the known defective window in Plaintiff’s unit. (FAC ¶22.)

Plaintiff alleges that Defendant breached this duty by designing, constructing, owning, cleaning, maintaining, inspecting, managing and/or supervising the Subject Premises in a careless and negligent manner which was below the standard of care for apartment complexes like the Subject Premises. (FAC ¶23.)

Plaintiff alleges that due to the careless and negligent acts of Defendant, Plaintiff suffered and continues

to suffer extreme and severe mental, emotional and physical pain and injury to her mind and body. (FAC ¶24.) Plaintiff alleges that A.R., was forced to undergo medical procedures to her fractured fingers, all in an amount to be determined according to proof at trial. (FAC ¶24.)

Plaintiff sufficiently alleges a cause of action for premises liability against Defendant. Plaintiff alleges Defendant owed Plaintiff a duty, breached such a duty, and was the proximate cause of the damage she suffered from Defendant's failure to act.

(See
FAC ¶¶20-25.)

Defendant's demurrer to the 1st
cause of action is overruled.

Negligent Infliction of Emotional Distress [Plaintiff
individually against Defendant] (2nd COA)

"[The] negligent causing of
emotional distress is not an independent tort but the tort of negligence . . .'
'The traditional elements of duty, breach of duty, causation, and damages
apply. Whether a defendant owes a duty of care is a question of law. Its
existence depends upon the foreseeability of the risk and upon a weighing of
policy considerations for and against imposition of liability.'" (Marlene F. v. Affiliated Psychiatric Medical Clinic, Inc. (1989) 48
Cal.3d 583, 588,
internal citations omitted.)

"Behavior may be considered
outrageous if a defendant (1) abuses a relation or position that gives him
power to damage the plaintiff's interests; (2) knows the plaintiff is
susceptible to injuries through mental distress; or (3) acts intentionally or
unreasonably with the recognition that the acts are likely to result in illness
through mental distress.'" (Molko v. Holy
Spirit Association
(1988) 46 Cal.3d 1092, 1122, superseded by statute, internal citation omitted.)

"In the absence of physical
injury or impact to the plaintiff himself, damages for emotional distress
should be recoverable only if the plaintiff: (1) is closely related to the
injury victim, (2) is present at the scene of the injury-producing event at the

time it occurs and is then aware that it is causing injury to the victim and,
(3) as a result suffers emotional distress beyond that which would be
anticipated in a disinterested witness.” (Thing v. La Chusa (1989) 48 Cal.3d 644, 647.)

“[I]t is not necessary that a
plaintiff bystander actually have witnessed the infliction of injury to her
child, provided that the plaintiff was at the scene of the accident and was
sensorially aware, in some important way, of the accident and the necessarily
inflicted injury to her child.” (Wilks v. Hom (1992) 2 Cal.App.4th 1264,
1271.)

Plaintiff alleges that when A.R.
was injured, Plaintiff, as A.R.’s mother, contemporaneously experienced the
trauma of her daughter’s injury, and accordingly has suffered great trauma and
severe emotional distress. (SAC
¶22.)

Plaintiff alleges that due to
the independent negligence of Defendant, Plaintiff was put in a position as a
bystander to these tragic events. (SAC
¶23.) Plaintiff alleges that she was
aware that her infant daughter was in the living room, was aware of the broken
window, and could hear the slamming of the broken window and her daughter’s screams
when the window crushed the baby’s hand. (SAC ¶24.)
Plaintiff alleges that witnessing her daughter experience such pain at
such a young age caused Plaintiff long lasting and profound emotional distress. (SAC ¶24.)

Plaintiff sufficiently alleges
negligent infliction of emotional distress by Defendant. Plaintiff alleges that she was
contemporaneously, sensorially aware of the injury inflicted upon her child
that resulted from Defendant’s alleged negligence. (See SAC ¶¶22-24.) Defendant’s
argument that Plaintiff must alleged that she visually perceived her daughter’s
injury is not supported by case law. The
California Supreme Court clarified its ruling on Thing v. La Chusa in Bird v. Saenz, stating that “Thing’s requirement that the
plaintiff be contemporaneously aware of the injury-producing event has not been
interpreted as requiring visual perception of an impact on the victim. A plaintiff may recover based
on an event perceived by other senses so long as the event is contemporaneously understood as
causing injury to a close relative.” (Bird v. Saenz (2002) 28 Cal.4th 910, 916,
emphasis added.) Here, Plaintiff
sufficiently alleges a contemporaneous understanding that she heard the broken

window slam and contemporaneously heard her daughter screaming and crying. (FAC ¶11.)
Plaintiff's allegation demonstrates that Plaintiff had contemporaneous
awareness that the broken window caused her daughter injury.

Accordingly, Defendant's
demurrer to Plaintiff's 2nd cause of action is overruled.

Conclusion

Defendant's demurrer is
overruled as to the 1st and 2nd causes of action.

Moving Party to give notice.

Dated: June _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court